

****20.06.2022****

****Sanction for Violation of GDPR****

The National Supervisory Authority has completed, on 27.05.2022, an investigation into the operator Association of Owners Aviation Park, following which it was found that the provisions of the General Data Protection Regulation (GDPR) were violated, the operator being sanctioned with a fine as follows:

- a fine of 9,885.80 lei, equivalent to 2,000 EURO for violating the provisions of art. 5 para. (1) lit. a) and c) and para. (2) in relation to art. 6 of the GDPR, as the operator excessively processed personal data (name, surname, series and number of the identity document, destination, arrival time, departure time, observations) of deliverers and/or couriers as data subjects, without a justified legal basis related to the purpose of processing (access control in the residential complex) and without providing evidence that it ensures correct and complete information to the data subjects, as well as that the processed data is adequate, relevant, and limited to what is necessary in relation to the purpose of processing;
- a fine of 24,714.50 lei, equivalent to 5,000 EURO for violating the provisions of art. 5 para. (1) lit. e) and para. (2) of the GDPR, because the operator did not establish a retention period for the processed personal data through the video surveillance system (the images) and stored them for a longer period than necessary for the fulfillment of the purpose for which they are processed, namely access control in the condominium, although it had the obligation to keep the images in a form that allows the identification of the data subjects for a period that does not exceed the period necessary for fulfilling the purposes for which the data is processed.

At the same time, based on art. 58 para. (2) lit. d) of the GDPR, the following corrective measures were imposed on the operator:

- Review and update the technical and organizational measures implemented as a result of the assessment regarding the risk to the rights and freedoms of individuals, including procedures related to the protection of personal data and establishing deadlines regarding the retention of data in a form that allows the identification of data subjects for a period that does not exceed the period necessary for fulfilling the purposes for which the data is processed.
- Evaluate the processing carried out considering the principle of proportionality and minimizing data in relation to the purpose and legal basis of processing and implement the necessary measures to

ensure compliance with the principles related to the processing of personal data provided by art. 5 of the GDPR.

The investigation was initiated following a notification reporting a possible violation of the provisions of the GDPR, as representatives of the security company collected and processed personal data for the purpose of allowing individuals access to the entrance of the residential complex, in which they requested a series of data from individuals entering the complex and noted them in an internal register. The investigation revealed that the processing of data for access to the residential complex was carried out according to a security service contract concluded between the owners' association (the operator) and the security company (the processor), whereby the association mandated the security company to ensure the security and protection of the objective through security agents and to complete the access record of individuals. In this regard, the operator issued for the processor the instruction that the agents performing security services complete the Access Record of Individuals with the personal data mentioned in its columns, namely name, surname, series and number of the identity document, destination, arrival time, departure time, observations, exclusively for delivery and/or courier services.

At the same time, during the investigation, it was found that at the level of the residential complex, access control was also carried out through the video surveillance system, and the Owners' Association could not prove compliance with the principle of storage limitation, established by art. 5 para. (1) lit. e) of the GDPR, namely the establishment of appropriate retention periods for the images, noting the existence of images stored for approximately one and a half years. In this context, we emphasize that according to art. 4 point 7 of the GDPR, the operator determines the purpose and means of processing, and according to art. 28 para. (3) lit. a) of the GDPR, the processor processes the data only based on documented instructions from the operator.

We also remind that according to art. 5 of the GDPR, the operator must respect the principles of data processing, including those regarding "lawfulness, fairness, and transparency," "data minimization," and "storage limitation." At the same time, the operator is responsible for compliance with the principles and must demonstrate this compliance ("the principle of accountability").

****Legal and Communication Department****

****N.S.A.P.D.C.P.****